DELEGATED REPORT

Item Number:
Application Number: S/RES/24/0947

Ward: St Margaret And South Marston
Parish:
South Marston

Proposal: A reserved matters application (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure - Reserved Matters from previous outline permission S/OUT/13/1555.
Location: Parcels R6 And R7 , Land North Of A420, Swindon

Agent:
Tony Clements
Nexus Planning
Holmes House
4 Pear Place
London
SE1 8BT

Applicant:
Rob Stroud
Vistry Homes Limited
Cleeve Hall
Bishops Cleeve
Cheltenham
GL52 8GD

Officer Report

DELEGATED REPORT

Item Number:

Ward: St Margaret And South Marston

Application Number: S/RES/24/0947

Parish: South Marston

Proposal: Reserved matters application (following outline planning permission S/OUT/13/1555) for access, appearance, layout, scale, and landscaping for 137 dwellings and associated infrastructure

Site Location: Land North of A420, Swindon

Case Officer:

Agent:
Daniel Sharp,
Nexus Planning,
Third Floor, Beacon Tower,
Colston Street,
Bristol,
BS14XE

Applicant
Vistry Homes Limited
C/O Agent

Officers Report

1 Background

1.1 Outline planning permission for the land to the north of the A420 (Rowbrough and South Marston) was granted on 11 August 2021 under the reference S/OUT/13/1555. The description of development is as follows:

" Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road."

1.2 The consent permits the development of land north of the A420, which is strategic allocation site under policy RA3 of the Local Plan for South Marston Expansion and Rowborough Village.

1.3 Outline consent required the preparation and approval of design codes and key strategies prior to the submission of Reserved Matters, the following conditions have been discharged; Phasing Details (Condition 6), Design Codes (Condition 7), Strategic Design Codes (SDC), and Character Area Design Code (CADC) (Conditions 8 and 9, respectively), as well as the Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP) (Condition 10).

1.4 This application seeks to approve Reserved Matters (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure. The application site comprises parcels R6 and R7 within the proposed South Marston Extension, as identified within the *Parcel Areas Plan (Figure 7 Planning Statement).* Parcels R6 and R7 comprises land to the west of Old Vicarage Lane, lying to the south of the village of South Marston. The land is currently laid to pasture and is bound by mature field boundaries in the form of mixed species hedgerows.

2 Summary of Recommendation

2.1 That the approval of the Reserved Matters be **GRANTED** subject to planning conditions

3 The Proposal

3.1 The proposal consists of the development of two parcels of land located on either side of Primary Street. The whole of the highways/access details between Old Vicarage Lane in the east and Thornhill Road is subject to a separate reserved matters submission. Parcel R6 lies to the west of Primary Street and R7 to the east, running up to Old Vicarage Lane. Parcel R6 contains 106 dwellings, R7 31 dwellings.

3.2 The proposed development mix of dwellings would contain the following:

- Block 1: 17 dwellings: Private (2 x 3-bed, 7 x 4-bed), Affordable Rent (4 x 2-bed)
- Block 2: 7 dwellings: Private (2 x 3-bed 5 x 4-bed)
- Block 3: 41 dwellings: Private (2 x 2-bed, 18 x 3-bed, 6 x 4-bed), Affordable Rent (6 x 1-bed, 4 x 2-bed), Shared Ownership (5 x 2-bed)
- Block 4: 17 dwellings: Private (2 x 2-bed, 7 x 3-bed, 8 x 4-bed)
- Block 5: 13 dwellings: Private (2 x 3-bed), Shared Ownership (6 x 2-bed)
- Block 6: 15 dwellings: Private (9 x 3-bed, 6 x 4-bed)
- Block 7: 31 dwellings: Private (2 x 2-bed, 13 x 3-bed, 12 x 4-bed), Shared Ownership (4 x 3-bed)

3.3 The proposed development would comprise 108 private dwellings (78.8%) and 29 affordable dwellings (21.2%) across parcels R6 and R7, in accordance with the requirement set out in Schedule 3, para. 1.1 of the S106 agreement that requires future reserved matters to provide between 20% and 26% affordable housing within any sub-phase of development (defined in the S106 agreement as a single residential reserved matters submission).

3.4 The affordable housing units are designed and arranged in clusters that meet the requirements of the S106 agreement, which states that affordable housing units should be tenure blind and in clusters of up to 15 units, of which no more than 11 should be for affordable rent. None of the clusters exceeds 15 dwellings in total and none include more than 10 affordable rented units.

3.5 The affordable units are designed to be indistinguishable from the market dwellings; the 2 and 3-bedroom affordable houses being Cooper and Asher house types, which are also proposed as private dwellings within the scheme. The dwellings have levels of external amenity space, privacy, and car parking that are commensurate with the equivalent market dwellings (by size and type) and are constructed from a palette of materials that is consistent with the type and quality used for the private dwellings.

4 The Site and Surroundings

4.1 Parcels identified as R6 and R7 are located within the South Marston East phase of the outline permission. The proposals relate to two separate parcels that are subject to this reserved matters application, which are located on either

side of the Primary Street (Village), which is subject to a separate reserved matters submission for the whole of the highways/access details between Old Vicarage Lane in the east and Thornhill Road, to the west.

4.2 Parcel R6 lies west of Primary Street, with R7 to the east, running up Old Vicarage Lane. Parcel R6 contains 106 dwellings, R7 31 dwellings.

5 Planning History

1. S/OUT/13/1555 – Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road. – Application Granted

2. S/AMEND/21/1881 – Non-material amendment to previous outline permission S/OUT/13/1555 regarding a variation to wording of 49 (Noise 3 - Mechanical Ventilation). – Minor Amendment Approved

3. S/COND/21/1956 – Discharge of condition 38 (Archaeology) from previous outline permission S/OUT/13/1555. – Conditions Partially Discharged

4. S/COND/21/1998 – Discharge of condition 6 (Phasing Details) from previous outline permission S/OUT/13/1555. – Conditions Discharged

5. S/COND/22/0031 – Discharge of condition 8 (Strategic Design Code) from Outline Planning Permission S/OUT/13/1555. – Conditions Discharged

6. S/COND/22/0315 – Discharge of condition 9 (Character Area Design Code) from Outline Planning Permission S/OUT/13/1555 - Old Vicarage Lane and Thornhill Road. – Conditions Partially Discharged

7. S/COND/22/0316 – Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. – Conditions Partially Discharged

8. S/COND/22/0451 – Discharge of condition 47 (Noise 1, Residential Amenity) from previous permission S/OUT/13/1555. – Conditions Partially Discharged

9. S/COND/22/0483 – Discharge of condition 26 (Thornhill Road Junction) and partial discharge of conditions 36 (Construction Method Statement), 37 (Construction and Environmental Management Plan), 13 (Tree Protection), 17 (Bats), 53 (Slab Levels) and 54 (Materials) from previous outline permission S/OUT/13/1555. – Conditions Partially Discharged

10. S/COND/22/0711 – Discharge of conditions 40 (Flood Mitigation) and 41 (Surface Water - Full Site) from Outline Planning Permission S/OUT/13/1555 - Old Vicarage Lane and Thornhill Road. – Conditions Partially Discharged

11. S/COND/22/0845 – Partial discharge of condition 39 (Archaeology - Management Plan) for phases 1 and 4 (South Marston) from previous permission S/OUT/13/1555. – Conditions Partially Discharged

12. S/COND/22/0879 – Discharge of condition 36 (Construction Method Statement) for Haul Road including partial discharge of conditions 13 (Tree Protection), 17 (Bats), 37 (Construction and Environmental Management Plan), 53 (Slab Levels) and 54 (Materials) following outline permission S/OUT/13/1555. – Conditions Partially Discharged

13. S/COND/22/0886 – Discharge of condition 59 (Thames Water - Waste Water) from Outline Planning Permission S/OUT/13/1555 - Old Vicarage Lane and Thornhill Road. – Conditions Discharged

14. S/COND/22/1067 – Discharge of conditions 33 (Highways England M4 J15) and 34 (Highways England A419 White Hart) from Outline Planning Permission S/OUT/13/1555 Old Vicarage Lane and Thornhill Road. – Condition Compliance Response Sent

15. S/COND/23/0848 – Discharge of condition 6 (Phasing Details) from previous outline permission S/OUT/13/1555. – Conditions Discharged

16. S/COND/23/1249 – Discharge of condition 60 (Water Supply Infrastructure) from previous application S/OUT/13/1555 – Conditions Discharged

17. S/COND/24/0479 – Discharge of condition 39 (Archaeological Management Plan) from previous application S/OUT/13/1555 - Conditions Discharged

18. S/LDP/24/0682 – Certificate of Lawfulness (Proposed) to confirm part compliance with Condition 3 (Timing of Reserved Matters) of application S/OUT/13/1555. – Application Granted

6 Representations

Lead Local Flood Authority (19/09/24)

6.1 No objections subject to compliance with the conditions imposed on the outline permission relevant to this phase. The first component of condition 42 should be submitted alongside the reserved matters to ensure that the detailed design of drainage is right for each phase. This material has not been provided.

Lead Local Flood Authority (15/11/24) (Further updated material)

6.2 The further submissions have been reviewed but the submitted material does not deal with our previous comments.

Ecology (27/09/24)

6.3 The information is not acceptable in the submitted format because the LEAMP is more akin to a landscape management plan and does not address constraints and considerations relating to protected species. If changes cannot be agreed the application should be refused.

Ecology (04/11/24) (Further updated material)

6.4 LEAMP – FPCR input October 2024.

6.5 This stand-alone document does not address the deficiencies in IDP's LEMP highlighted previously. A single combined report needs to be written and provided for review to inform future construction and site-management.

6.6 Until the fundamental issues with the submission are rectified, I will not review other revised documentation.

Local Highway Authority (LHA) (12/09/24)

6.7 No objections in respect of off-site highways impacts.

6.8 Two primary points of access into Parcel R7 are proposed off the Primary Street in the form of 5m wide bellmouth junctions, which do not appear sufficient to accommodate two-way movement at the junctions by larger, transit sized vehicles. Swept path analysis demonstrating that the junctions can accommodate such movements without the need to cross the centreline of the carriageway is required.

6.9 The visibility splays for the Primary Street are designed in accordance with Manual for Streets specifications for a 20mph road, which are inadequate because the target speed of the Primary Street is 30mph. In addition, there are a range of other shortcomings associated with the submitted visibility splays onto the Primary Street. The applicant should submit amended plans to demonstrate that adequate visibility in accordance with the 30mph target speed of the Primary Street can be achieved at all the proposed access points. Adequate pedestrian visibility should be demonstrated at vehicle crossovers onto the Primary Street.

6.10 Pedestrian and cycle access to Parcel R6 is acceptable.

6.11 There are three vehicle crossovers proposed onto Old Vicarage Lane, to provide access to Parcel R7 that are of sufficient width for two-way traffic. The visibility splays do not include an adjustment for bonnet length and include significant hedgerows within the splay lines that must be cut back and maintained at a height of 0.6m or less. The applicant should confirm that the proposed visibility splays along Old Vicarage Lane are in accordance with the relevant speed limits (which vary along the Lane).

6.12 The northern most access off Old Vicarage Lane serves 6 plots (128-133), no objection is raised subject to this access being designed to adoptable highway requirements.

6.13 Pedestrian access to Parcel R7 is proposed within the site adjacent to and running parallel with Old Vicarage Lane to the boundary of the application site. The proposed path should have a minimum width of 2m.

6.14 The on-site streets are not consistent with the principles set out in the approved design codes and the layout is not conducive to achieving speeds of less than 20mph. The Highway Authority expects the scheme to be designed as a 20mph zone, and therefore appropriate speed management features should be included in the layout to achieve this.

6.15 The layout does not accord with the 'Private Drive - Shared surface along development edge' coding instructions and the proposals fail to meet design code requirements for access to shared parking. There are areas where tandem parking is proposed in front of garages without sufficient space to access adjoining vehicles.

6.16 The quantum of car parking proposed meets Council Parking Standards. However, the distribution and configuration of visitor parking bays are not in accordance with Council Parking Standards.

6.17 Secure, sheltered cycle parking should be provided for all dwellings, including M4(3) dwellings. The proposals are deficient in this regard.

6.18 Considering the above assessment, I conclude as follows:

- Swept path analysis demonstrating the ability of the proposed accesses to accommodate the two- way movement of larger, transit sized vehicles, and without the need to cross the centreline of the carriageway is required.
- The proposals with respect to visibility do not accord with the relevant speeds to which the Primary Street and Old Vicarage Lane will be/are subject to.
- The footpath between Parcel R7 and Old Vicarage Lane should have a minimum width of 2m.

- The carriageway geometry with respect to traffic calming features does not accord with guidance in Manual for Streets (MfS).
- The layout with respect to private driveways and access to shared parking should be amended to accord with the approved design codes.
- Swept path analysis is required to demonstrate that the parking arrangements for Plot 43 can operate effectively.
- Visitor parking does not meet the requirements set out in the Council's Parking Standards with respect to siting or design.
- The provision of secure and sheltered cycle parking is required for all dwellings, including those classified as M4(3).

Unless changes are made to address these points, the application should be refused.

Highways (28/10/24) (Further updated material)

6.19 On considering further submissions responding to the initial consultation response, I conclude as follows:

- Visibility in accordance with a 30mph speed limit is required at the accesses off the Primary Street.
- A minimum separation of 0.5m is required between the carriageway and the cycleway.
- The design does not prioritise pedestrian and cyclist movement.
- More opportunities for pedestrians to cross the Primary Street are required, including consideration of signal control/pedestrian refuge.
- The footpath between Parcel R7 and Old Vicarage Lane should be designed to an adoptable standard.
- The application should be consistent with other live applications, the redlines of which overlap.
- The 'Shared Surface' and 'Mews' Streets' should be constructed to adoptable standards, which are not met.
- The proposals with respect to the Park Edge frontage do not accord with the approved design codes.
- The proposals with respect to the siting of visitor parking do not meet the requirements set out in the Council's Parking Standards.
- The layout requires an amendment to accommodate the turning movements of a refuse vehicle without the need to 'overhang' the footway; and
- Insufficient information has been provided to demonstrate sufficient opportunities for a car to pass a refuse vehicle.

Housing (12/09/24)

6.20 I am unhappy with the bedroom sizes for the Elmslie house type, which does not meet NDSS standards for a 3-bed five-person house (it is equivalent to a 3-bed four-person house). I am content with the Asher bedroom sizes.

Housing (08/11/24) (Further updated material)

6.21 No further comments.

Landscape (03/09/24)

6.22 The LEAMP is more of a landscape management plan.

6.23 Comments on the detailed planting scheme:

1. Dislike mixing of plants subject to different management regimes and timings. No objections to the arrangement of the planting beds.
2. Perennials and grasses will only be abundant for part of the year. The approach should be revisited across the site.
3. Blocks of single shrub species should be used across the scheme, divided into smaller blocks of planting because there is more than enough variety to choose from.
4. All proposed trees are 'Extra Heavy Standard'. I would prefer to see larger tree species used in key locations (correct species in the correct location type) with smaller trees specified elsewhere. Review use of species.
5. Plot 48 – review the relationship between the proposed tree/wall.
6. Rationalise residual slivers of green space across the site (i.e. plots 87 and 88, 102 and 103).
7. Review locations where larger trees could be planted – e.g. south-east of Plot 7.
8. Review natural desire lines (plots 57 and 58) to ensure the design works better (plots 126-129 work).
9. There are examples of odd areas of planting – small, curved areas of geranium planting by parking bays 16 – these should be squared off with the end of the adjacent parking bays.
10. Insufficient space for the central tree between parking bays (Plot 34). Review and revise.
11. Details of specification for tree staking and tree planting in areas of open grass is required. Use of mulching around bases is successfully deployed within Parcels R8/R9 and should be used here.
12. Individual shrubs, where planted in areas of grass, should be mulched around their circumference to protect them.
13. Garden boundary treatments should be specified for all plots.
14. Use an alternative species to Malus Trilobata (crab apple), which is inappropriate.

6.24 Overall, no objections subject to suggested amendments.

Tree Officer (23/09/24)

6.25 Agree with landscape colleague's comments.

6.26 There are several potential conflict areas between the existing trees and the proposed layout: The trees (and hedgerow) adjacent to the head of the cul-de-sac between plots 70 and 91; the visitor parking spaces west of plots 76 to 78; the dwelling footprint within plot 75 and the drain through the centre of the hedge along the southern boundary.

6.27 It is likely that the root protection areas of the respective trees and hedges are compromised, and information is needed to accurately assess the short- and long-term implications. Some of the conflicts may be resolvable with appropriate mitigation, without change to the design, while others may require amendment.

6.28 BS5837:2012, should be submitted to demonstrate that the trees indicated on the plans as retained are viable.

6.29 Several areas within the layout are not consistent with the approved strategic design code/character area design code. The in-parcel tree strategy promotes the use of species that are larger at maturity where space permits and, as noted by my landscape colleague, there are spaces that would benefit from this approach within the scheme.

6.30 The character area design code includes a vision diagram with a landscape-led gateway to the Primary Street, which is shown on the Regulating Plan. The proposals are underwhelming in this respect. The Primary Street coding instructions require verges with tree planting on alternate sides to help control traffic speed. The proposals do not satisfy this requirement fully.

6.31 Details of tree pit construction are required to show there will be sufficient soil to support the relevant species into maturity and to accord Highway Authority requirements in respect of construction within, or adjacent to, the carriageway.

<u>Tree Officer (12/11/24)</u>

6.32 Further to my memorandum of 23 September 2024, the applicant has submitted an arboricultural method statement prepared by FPCR (dated October 2024), a cross-sectional plan of various tree pit details presented by IDP (drg no.: IDPL LA5979-BP-404) and an amended suite of soft landscape proposals (IDPL LA5979-BP-401, 2 and 3 - all rev C).

6.33 I previously raised several points relating to potential conflicts with existing trees in the absence of any tree or hedge data highlighting, in particular, proposed work in the vicinity of T49 and H34, H35, T51 and H34.

6.34 The recently submitted arboricultural information includes a survey and assessment of the trees and hedges and a tree protection plan, with enlarged extracts focusing on the locations of proposed ‘no-dig’ construction (T41 and T45) or the where arboricultural supervision is required (G29).

6.35 I note that the incursions within the root protection areas of T41 and T45 are for the purposes of bearing a pedestrian footpath and, if constructed as set out in section 9.5, is likely to avoid any long-term impact on the roots beneath.

6.36 In respect of G29, however, its RPA will be breached to the east (albeit under supervision) by more than a third (4.5m) without any contingency for the discovery of roots. The parking space should be repositioned to a location wholly beyond the root protection area.

6.37 As regards the tree issues I raised previously, I acknowledge that T49 is to be removed on the grounds of condition and that construction of the parking areas to the east of H35 could be undertaken without detriment to the long-term health of the hedge.

6.38 Construction adjacent to T51 is within its root protection area. The RPA precludes the construction of the dwelling as proposed within plot 73 (previously numbered as plot 75). This will need to be addressed at this stage and the location of the dwelling revised to avoid the RPA.

6.39 The surface water drainage pipe through H34 at the southern boundary has not been addressed within the tree report. The sensitivity on this boundary is acute as there is extensive vegetation, plus a ditch, and the methodology needs to be understood before consent is granted.

6.40 The landscape drawings indicate that T49 is to be retained and accommodated into the scheme, all relevant plans and drawings should be revised to reflect this change.

6.41 The concerns raised regarding parking bays not complying with the coded requirements for tree provision have been addressed by amendments to the layout in respect of plots 63 – 84. Removal of parking spaces along the primary street has led to an arrangement for proposed trees that better resembles the requirements of the design code.

6.42 The presentation of the tree pit details, alongside the extent of below surface tree pits being identified on the landscape plans, indicates how the lifetime soil requirements will be facilitated. The available soil volume for the nine locations for G2 400 rootspace installation should be indicated and, as amendments are necessary to the landscape plan, this could be included on a revised Soft Landscape Proposals General Arrangement plan. Additionally, the positions of the engineered tree pits should be marked on either the Highways layout or the engineering layout as their construction has direct implications for the adjoining footway/carriageway construction.

<u>Tree Officer (19/11/24)</u>

6.43 Further to my previous memoranda, I attended a meeting today (19/11/24) with the applicants and their advisors in relation to the concerns I previously expressed. Prior to the meeting, the applicant sent an email (Chetan Solanki, 14/11/2024) that provided a plan extract of a revised plot 73 and a further email (Chetan Solanki,15/11/2024) attaching an amended arboricultural method statement (FPCR dated November 2024). The resultant changes were considered during the meeting and the applicant has agreed to resolve the issues by amending the respective plans as follows:

6.44 The parking bay within the root protection area (RPA) of the trees within G29 is to be moved elsewhere. The adjacent footpath creates a breach of the RPA but I agree with the assessment at 3.19 of the method statement that the impact on the trees is limited and can be controlled by appropriate technical supervision. The methodology for this is set out in section 8 of the document.

6.45 The incursion within the RPA of T51 is to be addressed by moving the footprint of the dwelling (plot 73) further west, to a point where it no longer breaches the RPA. I am satisfied that the construction of the dwelling, and the working space to achieve it, can now be accommodated without detriment to the long- term retention of the tree. I expressed some concern over a potential impact that the tree may have on the reasonable enjoyment of the garden space by the future occupiers but acknowledge that this could be managed by future pruning.

6.46 The position of the surface water drain through the hedge (H34) was to be altered so that the location could be shared with the intended pedestrian access to the open space to the southeast, reducing the impact on the hedge. There is a high arboricultural value in pursuing this, but it requires the realignment of the footpath link from the southeast to the northwest of the turning head. The landscape, drainage and engineering drawings are to be amended accordingly.

6.47 Two other points I raised previously, relating to the presentation of the soil volume information and the status of T46, were agreed to be incorporated into updated plans.

6.48 In respect of the progress made, there will no longer be any outstanding arboricultural issues if the amended information is identified on all the relevant plans. I will be pleased to assess the amended plans in due course but, that being successfully progressed, I advise that, if planning permission is granted, a condition is attached requiring compliance with all the tree protection measures set out in the FPCR arboricultural method statement (dated November 2024) and associated tree protection plans (FPCR 1796- T-49 Rev A and 1796-T-51 Rev A).

Urban Design (24/09/24)

6.49 **Block Structure**: The block structure (large central block in parcel R7) is cramped and the streetscene is dominated by car parking. The central block is

too large/deep to achieve a satisfactory traditional perimeter block with frontages facing backs/sides of dwellings and a large turning head required to manoeuvre refuse vehicles and to achieve access to properties. This compromises wider legibility and character.

6.50 Revisions are required:

- A series of smaller blocks to break up the central structure and connect to the other access roads and blocks.
- A central space including trees and landscape to enhance the block and contribute to its identity.
- Consider the wider block structure - may require altering block configuration to allow the central block to be rationalised.
- Consider movement across and within the scheme.
- Consider different more novel approaches to layout.
- Several of the plots have unacceptably small gardens.
- Provide additional pedestrian connections close to the south-west corner of Parcel R6.

6.51 **Street scenes, urban/village character:** There is a lack of continuity of frontage and/or a lack of composition across streets. More continuous building lines are required and more character within the streets, greater consistency. Strong and consistent approach to boundary treatments throughout, and a more place-based approach to delivering a sense of character.

6.52 Character is too heavily influenced by the design of the public highway and car parking.

6.53 A more landscaped approach is required.

6.54 **Architecture and character**: Architectural style is lacking quality and character; with some revisions could be significantly improved. Roof forms could be more varied/animated. More gable-fronted properties/aspects, use of dormer windows, bay windows, detailed door and window surrounds, chimneys, front porches, recessed porches and brick detailing.

6.55 Such details and forms are more typical of rural settings/villages and create more characterful places.

6.56 Landscape design, materials, street trees, lighting columns, boundary treatments, choice of materials, setback of frontages, building lines can all be used to help create character and a higher quality feel for the proposed development.

<u>South Marston Parish Council (18/09/24)</u>

6.57 Having talked directly to the Vistry architect and planner, we believe the whole approach lacks an appreciation of how this development sits within its

immediate surroundings, the impact of the piecemeal provision of essential infrastructure and the need for the design to relate to the wider expanded village.

6.58 Consideration of layout etc relies heavily on the neighbouring green infrastructure and design of the footpaths and cycleways it contains. A primary example of this is R6, which has no safe pedestrian/cycle route out of the red line area until other applications are submitted and agreed and 95% of a phase is occupied (see Phasing Plan and CADC-1 Movement Sequencing).

6.59 We hope that Officers see the relevance of safe cycleway/pedestrian access out of the red line area for each of these applications before 95% occupancy is achieved.

6.60 **Layout of R7:** Given the shape of this parcel alternative layout options are minimal. We are concerned about safe pedestrian access onto Old Vicarage Lane which has no footway, and absence of a direct route to the school.

6.61 **Layout of R6:** We have concerns about the cramped layout of R6. We understand the layout reflects the concept in the CADC for lower-density housing along boundaries. Whilst we have no objection to this as a generic principle, it results in large private housing on the outskirts, 5 hammerhead junctions at the end of multiple cul de sac, and a cramped arrangement at the centre. The CADC does not impose a specific layout within the residential parcels. Full adherence to the CADC general principle results, in our view, in a layout that is completely unacceptable.

i. Road Layout within R6

6.62 The road layout conflicts with the South Marston Neighbourhood Plan Policy NP4, which discourages large cul de sac. Use of culs de sac requires proliferation of turning heads and reduced legibility.

6.63 The central block is cramped and has no visitor parking close to the houses.

6.64 The streetscene is dominated by a long runs of parallel car parking in front of the dwellings. The interspersed street trees are not located within green infrastructure or other landscaping/verges and so do not filter views, as required by the CADC.

ii. Potential for a better layout

6.65 We believe that lower density housing should be incorporated on the southern boundary of R6, because this is the area most affected by railway noise, where greater height/massing would be appropriate. We have stated in previous responses that we would not object to 2.5 storey buildings on this boundary, particularly if that enables two dwellings on the same footprint. This would facilitate a wider distribution of affordable housing around the site. Semi-

detached housing would also offer opportunities to remove parallel parking from the frontage of houses within R6 and distribute visitor parking more evenly between open market and affordable housing.

iii. Parking

6.66 South Marston experiences parking problems on new build estates due to insufficient ad hoc parking provision. The settlement is still largely reliant on private cars for mobility and online deliveries. Visitor/ad hoc parking should be carefully considered to avoid the proliferation of problems. We are concerned about the overall number of visitor spaces that are proposed and the locations, which are predominantly on the external boundaries of the site, with none close to the affordable housing.

iv. Street Scene (R6 and R7)

6.67 We dislike the standard colour palette and identical roof lines along street views, which are not in keeping with the Taylor Wimpey R8 and R9 approach or the rest of the village. It lacks legibility. The designs should complement neighbouring designs and not impose a uniformity that creates an outward facing enclave.

v. Safe Access for pedestrians and cyclists

6.68 There is no safe pedestrian and cycle access to the school beyond the red line until the remainder of Primary Street is completed to the western edge of the Taylor Wimpey site. This application does not determine its timing.

6.69 Access to the local school and Village Centre relies on surfaced routes across the intervening green infrastructure being fit for purpose in connecting with Carpenters Walk. Those plans are not yet available and trigger points for delivery may make this very late in the occupation process. It will be important to ensure that safe pedestrian and cycle access beyond the red line boundary of this proposal can be achieved before there is 95% occupation of the whole phase.

6.70 Old Vicarage Lane is not a safe cycle or walking route because it has no roadside footway.

vi. Future Maintenance of Green Infrastructure

6.71 South Marston Parish Council is discussing future management of green infrastructure for the development.

vii. Provision for Utilities Infrastructure

6.72 We reiterate concerns that there is no strategic approach to the provision of utilities, and we would welcome some indication of the principle of undergrounding of overhead wires (power and telephone) that currently cross the site and its neighbouring strategic open space.

South Marston Parish Council (30/10/24) (Further submissions following design workshop on 26/09/24)

6.73 **Layout of R6:** Welcome the new footway/cycleway internal route to the northern boundary as the route to the Village Centre.

6.74 R6 and R7 now have relatively straight, designated safe routes to the school/new Village Hall. The northern pedestrian/cycle exit from the R6 is the key route to the bus stop and to the 'Carpenter's Walk' crossing of the Primary Street and on to the Village Centre and school.

6.75 The line of the access through the boundary should reflect discussions at the meeting and follow the footway around the hammerhead to follow the desire line as closely as possible.

6.76 The location of the pedestrian accesses out of the site on the western and southern edge are acceptable but should be coordinated with routes through the adjoining GI areas and follow a curved desire line, rather than a double right angle stretch approach.

6.77 The revised internal layout is much improved in legibility and has reduced the poor visual impact of rows of parallel parked cars.

6.78 The street scenes are more varied and interesting.

6.79 We note the quantum of parking has been achieved - the distribution is better (although not perfect).

6.80 R7 pedestrian route alongside OVL hedge – we believe this is 2m wide. We do not object to a knee-high rail separation with road/driveways. This is preferred to denoting it by surface finish, which is an open invitation to park on it.

6.81 We see limited value in the tree grouping north of R7 - it is not a 'gateway' location as defined by the CADC. The green infrastructure immediately north of it will have plenty of trees, as will all green infrastructure immediately external to the boundaries of R6. Meanwhile. there is still little in the way of internal green space in R6/7. Relocating some 'greenery' into the site may be of benefit to the layout or to increasing the size/utility of parking bays.

6.82 We understand the road accesses etc onto the Primary Street will be defined by the agreed R6/7 plans, and the current planning application for the Primary Street will be resubmitted taking account of those.

6.83 Road accesses from housing direct onto OVL - our concern would be provision of the appropriate visibility and turning circles required, which would, in our view, over-ride the impact on hedge retention unless alternative solutions can be found.

7 Relevant Planning Policy and Guidance

7.1 Section 38 (6) of the Planning and Compulsory Purchase Act 2004 requires applications for planning permission to be determined in accordance with the development plan unless material considerations indicate otherwise. Section 70 (2) of the Town and Country Planning Act 1990 provides that the Local Planning Authority (LPA) shall have regard to the provisions of the development plan, so far as material to the application and to any other material considerations. National Planning Policy Framework (NPPF) reiterates the pre-eminence of the local plan as the starting point for decision-making (Paragraph 2).

7.2 The NPPF is a material consideration in any assessment. It is clear in paragraph 12 that the presumption in favour of sustainable development does not change the statutory status of the development plan as the starting point for decision-making. Therefore, development coming forward must be determined in accordance with the local development plan, which in this case comprises the Swindon Local Plan 2026 ('the Local Plan).

7.3 The planning policy context and key planning considerations relating to the proposal are set out below.

Policy Context

National Planning Policy Framework (2023)

7.4 The National Planning Policy Framework (‘NPPF’) details the national planning policies for England. The planning system performs three roles in achieving sustainable development, namely the economic, social and environmental. The NPPF states that these roles are mutually dependant and that to achieve sustainable development, economic, social and environmental gains should be sought jointly and simultaneously through the planning system.

Swindon Borough Local Plan 2026 (2015)

7.5 The Swindon Borough Local Plan 2026 (‘Local Plan’) was adopted by Swindon Borough Council (‘The Council’) on 26th March 2015 and forms part of the Development Plan for Swindon.

7.6 Policy NC3: New Eastern Villages – including Rowborough and South Marston Village Expansion allocates the land for development as part of one of the new communities allocated within the Local Plan. The reserved matters submission lies within the South Marston component, which is identified for 500 dwellings (of the 2,000 dwellings located to the north of the A420).

7.7 The following policies are relevant to the reserved matters submission:

- DE1 – High Quality Design
- DE2 – Sustainable Construction
- HA1 – Housing – Mix, Types, and Density

- HA2 – Affordable Housing
- HA3 – Wheelchair Accessible Housing
- TR2 – Transport and Development
- IN4 – Low Carbon and Renewable Energy
- EN1 – Green Infrastructure Network
- EN3 – Open Space
- EN4 – Biodiversity and Geodiversity
- EN6 – Flood Risk
- EN7 Pollution
- EN6 Flood Risk

South Marston Neighbourhood Plan (SMNP)

7.8 The South Marston neighbourhood plan was adopted at a full council meeting on 9 November 2017. It forms part of the borough's statutory development plan and will be used to determine planning proposals in South Marston parish.

7.9 The relevant policies of the SMNP for this proposal include the following:

- NP Policy 1 – Integrated Development
- NP Policy 2 – Design
- NP Policy 5 – Access to The A420
- NP Policy 8 – Cycleways And Footpaths

Other guidance

7.10 Development Control Guidance Note Technical Guidance on Parking Standards (2021)

Wiltshire and Swindon Waste Core Strategy (2009)

7.11 The adopted Wiltshire and Swindon Waste Core Strategy Policy WCS6 'Waste Reduction and Auditing' applies to all major developments.

Community Infrastructure Levy Charging Schedule (2015)

7.12 Swindon Borough Council adopted the Community Infrastructure Levy (CIL) Charging Schedule in March 2015, effective April 6th, 2015. The application is located within Residential Zone 1 (Swindon's New Communities), which has a £0 CIL charging rate instead of relying on S106 due to the strategic nature of the development.

8 Principle of the Development

8.1 Paragraph 14 of the NPPF states that at the heart of the National Planning Policy Framework is **a presumption in favour of sustainable development**, which should be seen as a golden thread running through both plan-making and decision-taking.

8.2 The outline permission addresses the policies of the plan. The principle of development is acceptable by virtue of the outlined planning consent and

compliance with the approved Section 106 Agreement, conformity with discharged conditions and other policies of the Swindon Local Plan 2026.

8.3 The consideration of reserved matters applications accords with Article 2 of the Town and Country Planning (Development Management Procedure) (England) Order 2015 ("DMPO"), which is limited to access, appearance, landscaping, layout, and scale.

Access, Parking and the Impact on the Highway Network

8.4 Policies TR1 and TR2 of the Local Plan seek to ensure access for developments that is appropriate to the scale, type and location of the proposal without detriment to highway safety, traffic movement and the local environment. They also seek to reduce the need to travel and support and encourage sustainable, safe and efficient movements throughout the Borough.

8.5 The Parking Standards for New Development (February 2021) sets out the parking requirements for development.

8.6 The Local Highway Authority (LHA) was consulted on the application and reviewed the submitted information to assess the adequacy of the proposed site access arrangements and the safety and effectiveness of the internal layout. Following various revisions, the LHA advises that there is no objection to the proposal.

8.7 The revised highway layout ensures visibility for the 30 mph target speed of Primary Street. The submitted information indicates that the land required for visibility forms part of the public highway and that appropriate planting should be below 600mm in height to preserve adequate visibility. The proposed development would accord with Note 5, which states that land for visibility must be safeguarded, adopted, and maintained as a public highway as part of the S278/S38 agreement.

8.8 The highway layout also shows visibility commensurate to the speed limit along Old Vicarage Lane. While visibility appears to extend through existing vegetation, which is retained, the revised Soft Landscape Proposals General Arrangement advises that adequate visibility will be facilitated by trimming and maintaining the existing hedgerow.

8.9 A 0.5-meter separation between the cycleway and the carriageway is proposed. However, the Local Highway Authority notes that this width is inadequate for growing grass. The applicant is advised that hardstanding is the preferred surface treatment for areas less than 1 meter wide.

8.10 The Local Highway Authority (LHA) is confident that the proposed cycleway crossing arrangements will prioritise pedestrians and cyclists along Primary

Street. Additionally, the design aligns with the plans that illustrate the layout of the Primary Street.

8.11 The ‘uncontrolled’ crossing of Primary Street has been relocated to the front of Plot 85, which is acceptable and will be agreed upon during the S38 stage. The arrangement of the footpath connections opposite Plots 4 and 91 has been rationalised, as requested.

8.12 A knee rail that was proposed alongside the footpath in front of Plots 120-133 has been removed. The submitted information indicates that large vehicles can enter and exit the parking bays without " bumping" over the footpath. As previously stated, this footpath will be the only pedestrian access to the dwellings facing it. It will also provide a route to South Marston Village bus stops, primary school, and recreational facilities. Therefore, the Local Highway Authority expects this connection to be built to an adoptable standard, which will also require adequate lighting along the path.

Internal Site Layout

8.13 The layout with respect to the Shared Surface and Mews Streets has been amended to reflect the Local Highway Authorities' adoptable standards and address the lack of speed control features. In this regard, my earlier concerns have been overcome. The layout concerning the Park Edge frontage complies with the approved Strategic Design Code (SDC).

8.14 The highway layout shows pedestrian crossings on the Tertiary Streets indicatively. The final location of pedestrian crossings will be agreed upon at the S38 Stage.

8.15 While the distribution of visitor parking is unsatisfactory, the proposal meets the requirements of the Parking Standards with respect to quantum and design. Earlier revisions to the layout have also improved the permeability and legibility of the visitor parking, which, on balance, is acceptable.

8.16 A revised Refuse Vehicle Swept Path Analysis and Bin Collection Plan has been submitted to demonstrate that refuse vehicles could perform turning manoeuvres at the proposed turning heads without the need to ‘overhang’ the footway, and is acceptable. The highway layout now provides clear visibility around the bends near Plots 43 and 59. The LHA agrees that a corresponding speed of 15 mph is suitable.

8.17 All dwellings are provided with an electric vehicle (EV) charging point.

8.18 The design of the parking provision is in accordance with the requirements of the CADC in terms of type and distribution. Where frontage parking is provided to serve dwellings, the continuous provision of bays is limited to six no. broken up by planted margins, with trees provided where practicable in accordance with the requirements of the layout.

8.19 Cycle parking is in accordance with SBC standards: 1 secure space for 1-2-bed dwellings (excluding M4(3) dwellings) and 2 spaces for 3+-bed dwellings.

Dwellings provided with garages incorporate cycle parking provisions within the garages (which satisfy minimum dimensions—6.0m x 3.0m). Where no garage space is provided, secure lockable sheds are provided within the rear gardens.

8.20 The submitted information has overcome the earlier concerns of the LHA, and therefore, no objection is raised.

Appearance/Layout/Scale

8.21 Conditions attached to the outline planning permission (S/OUT/13/1555) required that design codes and strategies be prepared and approved before submitting Reserved Matters. The following conditions have been discharged and inform these Reserved Matters:

- Condition 6 – Phasing Details
- Condition 7 – Design Codes
- Condition 8 – Strategic Design Codes (SDC)
- Condition 9 – Character Area Design Code (CADC)
- Condition 10 – Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP)

8.22 This application is accompanied by a Design Compliance Statement, which demonstrates how the proposed development has been prepared in accordance with the Strategic Design Code (SDC) and the supporting Mandatory Coding Plans for the South Marston Extension and Rowborough Village Development.

- The Mandatory Coding Plans include the following:
- Strategic Coding Plan
- Open Space Coding Plan
- Open Space Referencing Plan
- Land Use and Built Form Coding Plan
- Character Areas Coding Plan

8.23 The site layout is coherent and functional. The application proposal is for 137 dwellings divided into two distinct areas separated by a Primary Street that provides access to the proposed South Marston Centre, primary school and play area. The residential parcels are low-density, as prescribed in the South Marston & Nightingale Corner Character Area within the SDC.

8.24 Parcels R6 and R7 lie within the Marston Gate and Nightingale Corner Character Area. The layout design generally provides an attractive, responsive residential environment.

8.25 The Built form represents in general traditional lower-scale development, and materials, building arrangement, and scale combine to achieve compliant frontages, elevational styles, and dwelling types suitable for the South Marston and Nightingale Corner Character Area.

8.26 The largest homes are situated in locations ideal for key focal buildings, such as prominent corners that enhance views and landscapes. These larger

buildings feature additional architectural details.

8.27 The palette of materials is to be agreed upon.

8.28 Parcels R6 and R7 feature a formal green frontage, allowing for a character change based on landscape treatment, boundary treatment, and building types. Hard boundary treatments enhance the formal structure of the Primary Street. In contrast, the boundary treatments along the Parkland Edge and Old Vicarage Lane are soft and align with the existing retained hedgerows or public open spaces.

8.29 Semi-detached houses line the non-verge side of the Primary Streets as specified by the SDC, while the verge-side detached houses create a continuous frontage with varied rooflines and rear parking courtyards to minimise vehicular accesses.

8.30 Larger dwellings incorporate architectural detailing to enhance the character of the frontages and various porches and roof styles to improve distinctiveness and reflect the local aesthetic. A Mews Street has been introduced to facilitate better vehicular and pedestrian access for residents. The Mews connects to a Shared Surface Street that leads to the Public Open Space (POS) and provides access to multiple visitor parking spaces. The overall design allows for ease of movement from the edge to the centre of Parcel R6.

8.31 Frontage parking with increased landscape buffers enables significant tree planting on Tertiary Streets and Mews Street. Legible pedestrian links through parcels allow for ease of movement across Parcels R6 & R7, with focal tree planting acting as wayfinding.

8.32 Landscaping build-outs on straight roads provide traffic calming measures and create vistas towards the north-south tertiary streets. Public/private spaces are defined by solid boundary treatments. Development frontage along the Parkland Edge with detached dwellings vary in accesses and roofscapes and built form, with landscaped front gardens and varied boundary treatments;

8.33 The SBC Placemaking Urban Design Officer has commented on the scheme and raised concerns about aspects of the submitted scheme. After several iterations of revised plans to address the concerns raised, the Placemaking team is generally satisfied.

8.34 Regarding the site layout, the SBC Urban Design Officer considers general changes to the proposal to meet the requirements of previous comments. Such revisions include improvements to Mews Street, which make it more connected and legible as a place and remove the need for a large turning head. Instead, the routes are properly connected around the houses, which works much better for future users.

8.35 The run of terraced dwellings at plots 62-69 and 79-84 had a very poor street scene. This has been improved by planting trees to break up the parking at the front.

8.36 The frontages still illustrate shrubbery planting rather than proper boundary

treatments, such as a low wall with railings and a hedge to the front of dwellings. The properties are too close to the car parking spaces, and there is insufficient room to allow a decent boundary treatment to be accommodated, which will result in the car parking spaces dominating the street scene. Plots 80-83, while presented as terraces, are semi-detached dwellings with a 1m side path for rear access. All terraced dwelling arrangements require a simple and effective boundary treatment arrangement to the front.

8.37 Boundary treatment plan—this is missing. We need to see boundary treatments across the site. These are a key aspect of character and placemaking and contribute to establishing enclosure and character in a street scene.

8.38 Some vistas within the layout miss the opportunity to address the street and align themselves well with that street.

8.39 The detailing around the turning heads is much improved, particularly the turning heads outside plot 14, which need to be further rationalised to avoid tiny, unusable spaces.

8.40 Street scenes are also improved by introducing extra brick detailing to the ground floor treatments, adding some chimneys, and converting some eaves-fronted dwellings to gable-fronted or gables. These additions are improvements.

8.41 The street scene that isn't quite right yet is Streetscene B-B (along Vicarage Lane). This street includes many historic buildings, none of which include 'hipped' roof forms, instead they are gable-ended.

8.42 While the material choice could be dealt with through a condition, it would be preferable as a darker shade than presented, ideally a brown colour rather than a pink/red to respond to the existing historical context.

8.43 The submitted information has generally overcome the Placemaking Team's earlier concerns and is considered acceptable. Regarding the boundary treatment and boundary treatment plan, this can be addressed by means of condition.

Landscape

8.44 The residential layout allocates space for trees to enhance views, serve as gateway features, and soften buildings, parking bays, and boundaries.

8.45 Landscaping strategy generally comprises of *feature gateways* and *essential community green spaces*. The gateways are located within the RM application site, specifically at the Primary Street-Village interface with rural and parkland areas (adjacent plots 88-117). The key community green space is situated to the north, and street trees are also incorporated.

8.46 The southern entrance to the Village section of the Primary Street is flanked by large trees with verge and extended margin planting combined to create a stronger gateway impression; thereafter, the Primary Street incorporates street trees (8 no. on the western/southern edge and 6 no. on the eastern/northern edge) for the full length of the Street within Parcels R6/R7.

8.47 The northern street trees are adjacent to the incidental area of public open space that adjoins and complements the Key GI Space immediately to the north of the application site. This area is planted with grouped specimen trees to extend and integrate the Key Space into the residential parcels.

8.48 The dwellings face this area, resulting in an active frontage. In the landscape design for the parcel, extra heavy standard (EHS) trees, with a girth of 14-16 cm, will be used throughout the proposed development in line with the regulations of the CADC. A total of 113 EHS trees are specified. The soft landscaping proposals comply with the CADC.

8.49 The SBC Arboricultural Officer has commented and stated the following: *The submitted information confirms the proposed amendments that were discussed at the meeting of 19/11/2024. In that regard, I am satisfied that the proposal now addresses the concerns set out in my memo of 19/11/2024 and that the outstanding arboricultural elements have been satisfactorily resolved. I advise that, if planning permission is granted, a condition is attached requiring compliance with all of the tree protection measures set out in the FPCR arboricultural method statement (dated November 2024) and associated tree protection plans (FPCR 1796-T-49 Rev B and 1796-T-51 Rev B).*

Housing

8.50 In respect of housing, the Housing Strategy and Development Officer did express disappointment with the bedroom sizes, specifically The Elmslie house type, and requested 3-bed properties suitable for 5 persons. Since National Described Space Standards (NDSS) for a 2- 2-person room had not been reached, the house type should be downgraded to a 3-bed 4-person property.

8.51 The applicant has written to confirm that The Elmslie is an open-market dwelling and, therefore, does not require meeting NDSS.

8.52 The Housing Strategy and Development Officer has made no further comment.

Ecology

8.53 The application was reviewed by the Senior ecologist, who considered that although the Landscape, Ecology, and Arboricultural Management Plan (LEAMP) (FPCR, November 2024) report is lacking in sufficient detail. Condition 11 of S/OUT/13/1555 is already live and will need to be discharged before development can start on this parcel. Existing it is enough for Reserved Matters.

8.54 Condition 11 says “No development on each sub-phase shall commence until the LEAMP for that sub-phase has been approved in writing by the Local Planning Authority.” The LEAMP will need to be improved as set out below and previously before I will be able to recommend discharge of Condition 11 of S/OUT/13/1555 in due course.

8.55 It is considered that the submitted LEAMP lacked specific recommendations in places. There are also no proposals for ecological monitoring even though the FLEAMP (Condition 10 of S/OUT/13/1555 says “A detailed 30-year biodiversity management plan (LEAMP), based on the detailed framework management principles set out above, will be produced to support this as part of the Reserved Matters Application necessary for each phase, including details of the roles, responsibilities and management mechanism to be put in place.” (para

6.3 of Framework Landscape, Ecology And Arboricultural Management Plan (FLEAMP), FPCR, November 2023.) The FLEAMP is under S/COND/22/0316 (Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420 Eastern Villages Swindon).

8.56 The Biodiversity Metric has also not been provided even though the FLEAMP commits to providing it:

"The Metric should however be regarded as an iterative document, being updated as each Phase/Reserved Matters comes forward, and in the event there are any changes to the phasing of the development." (6.8)

8.57 Natural England licence number 2024-00670-EPS-DLL is included at the back of the LEAMP report, covering the area within the red line boundary. Therefore, impacts on great crested newts have been addressed.

8.58 There are no elevations drawings showing where bird and bat boxes will be installed. This information needs to be provided. It is in the applicant's interest to provide this, because if it is forgotten to install them, it may be necessary to take enforcement action, as at Abbey Farm, where retro-fitting was considerably more difficult and expensive for the developer. This will need to be picked up in the discharge of Condition 11.

8.59 Boundary drawings should be amended to show the locations of hedgehog highways in garden fences, so site-wide permeability for hedgehogs is provided. Although hedgehogs are not mentioned in the FLEAMP, which is an oversight, Vistry commits to providing hedgehog highways in the 'Homes for Nature' document (October 2024), which it has signed up to. It states the following:

"Hedgehog Highways are created by making or leaving small gaps measuring 130mm x 130mm in the base of walls and fences to allow hedgehogs to pass between neighbouring spaces. Gaps should be towards the back of the garden where possible, where planting and shrubs often provide shelter. Gaps in multiple boundaries are required which create a safe route through a development from garden to garden and into and out of open spaces, hedgerows and adjoining land, avoiding egress onto busy roads."

8.60 If boundaries can't be revisited after RM has been determined, then the hedgehog highways need to be identified and prioritised.

8.61 The LEAMP should also pick up the other recommendations made in the 'Homes for Nature' report.

8.62 Landscape, Ecology And Arboricultural Management Plan (LEAMP) (FPCR, November 2024)

8.63 This report in places it lacks specific recommendations. There is no ecological monitoring. Information in the FLEAMP which commits to it being provided by

the LEAMP has not been included. I have highlighted some elements above: not an exhaustive list.

8.64 The report settings prevent comparison by Acrobat against the previous version. By preventing efficient working, this just slows down review and determination. Please change your settings. Please provide revised versions of the LEAMP in two forms to aid faster review: one copy showing track changes for internal review and another copy with track changes accepted to be uploaded on the planning portal.

8.65 Locations of bird nest boxes needs to be shown on drawings. Landscape, Ecological & Arboricultural Management Plan (IDP, August 2024, Rev B, 10.10.24)

Lead Local Flood Authority

8.66 The LLFA was consulted on this planning application advising on 19/09/24 that they have no objections subject to compliance with the conditions imposed on the outline permission relevant to this phase of the development.

8.67 The first component of condition 42, which must be submitted alongside the reserved matters to ensure that the detailed drainage design is right for each phase, has not been provided. Therefore, the detailed drainage strategy is not required as part of the RM package, although its design will have a bearing on the layout to be approved under the RM submission.

8.68 The LLFA was consulted on the discharge of the conditions attached to the outline consent, Condition 42, and has commented that it disagrees with the above response. Swindon had a very recent detrimental flooding in 2023; therefore, it is very important to get the drainage design right for each phase/site. Please submit/ resubmit as the first part of Condition 42 for this application.

8.69 Drainage details sufficient to demonstrate that parcels R6 and R7 can be drained in accordance with the discharge rates of the approved drainage strategy are provided. The RM submission includes a drainage design that will achieve the requirements of the approved strategy.

8.70 The drainage details that are sought by the LLFA are subject to the provisions of a pre-commencement condition preventing any development from taking place until the condition is discharged. This does not form part of the reserved matters.

8.71 The applicant's drainage engineers are preparing a submission to discharge the requirements of condition 42 fully as a separate DISCON application. The design of the scheme will not affect the reserved matters that are subject to this application (layout/scale/appearance/landscaping) and therefore do not require determination of the RM to be delayed pending the outcome of the detailed surface water drainage strategy.

8.72 The LPA will retain full control over matters relating to drainage of the site following approval of this RM application and will not be compromised in respect of achieving a workable and satisfactory drainage solution for parcels R6 and R7.

9 Conclusion

9.1 The application is considered to be in general accordance with the outline permission S/OUT/13/1555 and the provisions of Phasing Details (Condition 6), Design Codes (Condition 7), Strategic Design Codes (SDC) and Character Area Design Code (CADC) (Conditions 8 and 9, respectively), as well as the Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP) (Condition 10. The proposed development would accord with the relevant local plan policies, and the West Oxfordshire Design Guide and the NPPF. As such, it is considered that these Reserved Matters be approved.

10 Recommendation

10.1 That planning permission be **GRANTED** subject to planning conditions

Conditions

Condition 1. This approval shall be in respect of the following plans submitted to the Local Planning Authority on the listed date:

Location Plan	PL-01	12th August 2024
Planning Layout	PL-03 H	22nd November 2024
Presentation Layout	PR-03 D	22nd November 2024
Materials Plan	PL-04 E	22nd November 2024
External Works Plan	PL-05 D	22nd November 2024
Boundary Treatments	PL-05.1 B	8th November 2024
Affordable Homes Plan	PL-06 D	22nd November 2024
EV Charging Plan	PL-07 D	22nd November 2024
Parking Plan	PL-08 D	22nd November 2024
Garden Sizes Plan	PL-10 C	22nd November 2024
Street Scenes	SS-01 A	15th October 2024
Street Scenes	SS-02 A	15th October 2024

Housetype Planning Drawing Cooper-01	HT-COO-01	15th October 2024
Housetype Planning Drawing Cooper-02	HT-COO-02	15th October 2024
Housetype Planning Drawing Elmslie-01	HT-ELM-01	15th October 2024
Housetype Planning Drawing Elmslie-02	HT-ELM-02	15th October 2024
Housetype Planning Drawing Asher-01	HT-ASH-01	15th October 2024
Housetype Planning Drawing Asher-02	HT-ASH-02	15th October 2024
Housetype Planning Drawing Asher-03	HT-ASH-03	15th October 2024
Housetype Planning Drawing Asher-04	HT-ASH-04	15th October 2024
Housetype Planning Drawing Asher-05	HT-ASH-05	15th October 2024
Housetype Planning Drawing Asher-06	HT-ASH-06	15th October 2024
Housetype Planning Drawing Speirs-01	HT-SPE-01	15th October 2024
Housetype Planning Drawing Speirs-02	HT-SPE-02	15th October 2024
Housetype Planning Drawing Speirs-03	HT-SPE-03	15th October 2024
Housetype Planning Drawing Speirs-04	HT-SPE-04	15th October 2024
Housetype Planning Drawing X307-01	HT-X307-01 A	15th October 2024
Housetype Planning Drawing X307-02	HT-X307-02 A	15th October 2024
Housetype Planning Drawing X307C-01	HT-X307C-01 A	15th October 2024
Housetype Planning Drawing X414-01	HT-X414-01 A	15th October 2024
Housetype Planning Drawing X414-02	HT-X414-02 A	15th October 2024
Housetype Planning Drawing X414-03	HT-X414-03	15th October 2024
Housetype Planning Drawing X417-01	HT-X417-01 A	15th October 2024
Housetype Planning Drawing X417-03	HT-X417-03 A	15th October 2024
Housetype Planning Drawing X418-01	HT-X418-01	15th October 2024
Housetype Planning Drawing X418-02	HT-X418-02	15th October 2024

Housetype Planning Drawing X418-03 HT-X418-03 15th October 2024
Housetype Planning Drawing X416-01.1 HT-X416-01.1 A 15th October 2024
Housetype Planning Drawing X416-01.2 HT-X416-01.2 A 15th October 2024
Housetype Planning Drawing X416-02.1 HT-X416-02.1 A 15th October 2024
Housetype Planning Drawing X416-02.2 HT-X416-02.2 A 15th October 2024
Housetype Planning Drawing Leverton-01 HT-LEV-01 A 15th October 2024
Housetype Planning Drawing Pembroke-01 HT-PEM-01 A 15th October 2024
Housetype Planning Drawing Pembroke -02 HT-PEM-02 A 15th October 2024
Housetype Planning Drawing Cottingham-01.1 HT-COTT-01.1 A 15th October 2024
Housetype Planning Drawing Cottingham-01.2 HT-COTT-01.2 A 15th October 2024
Housetype Planning Drawing Cottingham-02.1 HT-COTT-02.1 A 15th October 2024
Housetype Planning Drawing Cottingham-02.2 HT-COTT-02.2 A 15th October 2024
Housetype Planning Drawing Cottingham-03.1 HT-COTT-03.1 15th October 2024
Housetype Planning Drawing Cottingham-03.2 HT-COTT-03.2 15th October 2024
Housetype Planning Drawing AF1-01 AFF-AF1-01 A 15th October 2024
Housetype Planning Drawing Cooper-01 AFF-COO-01 A 15th October 2024
Housetype Planning Drawing Asher-01 AFF-ASH-01 A 15th October 2024
Housetype Planning Drawing Asher-02 AFF-ASH-02 A 15th October 2024
Housetype Planning Drawing Asher-03 AFF-ASH-03 A 15th October 2024

Single Garages GAR-01 12th August 2024
Double Garage Double Owner GAR-02 12th August 2024
Double Garage Single Owner GAR-03 12th August 2024
Soft Landscape Proposals General Arrangement IDPL LA5979-BP-400F 22-Nov-2024
Soft Landscape Proposals 1 of 3 IDPL LA5979-BP-401E 22nd November 2024

Soft Landscape Proposals 2 of 3 IDPL LA5979-BP-402E 22nd November 2024
Soft Landscape Proposals 3 of 3 IDPL LA5979-BP-403E 22nd November 2024
Tree Pit Details IDPL LA5979-BP-404 15th October 2024
Landscape, Ecological & Arboricultural Management Plan 20th November 2024
Engineering Layout 240616-RAP-XX-XX-DR-C-0100 P06 22nd November 2024
Highway Layout General Arrangement 240616-RAP-XX-XX-DR-C-0101 P05 22-Nov-2024
Swept Path Analysis - Fire Tender 240616-RAP-XX-XX-DR-C-0102 P05 22-Nov-2024
Refuse Vehicle Swept Path Analysis and Bin Collection Plan 240616-RAP-XX-XX-DR-C-0103 P05 **22-Nov-2024**

Delivery Van Swept Path Analysis 240616-RAP-XX-XX-DR-C-0104 P04 22-Nov-2024

Large Car Swept Path Analysis 240616-RAP-XX-XX-DR-C-0105 P03 22-Nov-2024
Adoptable Highway Plan 240616-RAP-XX-XX-DR-C-0110 P04 22nd November 2024
Cycleway Crossing 240616-RAP-XX-XX-DR-C-0120 P02 22nd November 2024
Long Section - Sheet 1 240616-RAP-XX-XX-DR-C-0400 P03 22nd November 2024
Long Section - Sheet 2 240616-RAP-XX-XX-DR-C-0401 P04 22nd November 2024
Long Section - Sheet 3 240616-RAP-XX-XX-DR-C-0402 P04 22nd November 2024
Single Charge Point Mounted on External Post TGN 0028 V1.0 12th August 2024
Single Charge Point Mounted on External Wall TGN 0029 V1.0 12th August 2024
Electrical Vehicle Charge Point Mounting Posts DS 0537 V1.1 12th August 2024
Design Compliance Statement 15th October 2024
Planning Compliance Statement 12th August 2024
Affordable Housing Statement 12th August 2024
Design Technical Note 01 12th August 2024
Conditions 48 and 49 (Noise) 3070333-RSKA-RP-005-(01) 12th August 2024
Arboricultural Method Statement 22nd November 2024

Reason: To define the scope of the development hereby permitted in accordance with section 72 of the Town and Country Planning Act 1990.

Materials (Buildings)

2. Notwithstanding the submitted plans, prior to any works above slab level in connection with the development hereby permitted, details and samples of all external facing materials in broad accordance with PL-04 E Materials Plan (including facing materials, roof tiles, window, door, balcony and canopy casements, rainwater goods and boundary treatments) shall have first been submitted to and approved in writing by the Local Planning Authority. The development hereby permitted shall be carried out in accordance with these approved details.

Reason: To ensure that the appearance of the development is satisfactory.

Materials (Hard Landscaping)

3. Notwithstanding the submitted plans, prior to works above slab level in connection with the development hereby permitted, details and samples of all surface materials, in broad accordance with (including roads, footways, footpaths, hazard paving, route finding markers, and parking spaces surfacing) shall have first been submitted to and approved in writing by the Local Planning Authority. These details shall clearly identify how visitor parking spaces will be labelled and how signage clearly identifies the private and public parking areas. The development hereby permitted shall be carried out in accordance with these approved details.

Reason: To ensure that the appearance of the development is satisfactory.

Landscape and Public Realm

4. All hard and/or soft landscape works shall be carried out in accordance with the approved details. The works shall be carried out prior to the occupation of any part of the development or in accordance with the programme (phasing) agreed in writing with the Local Planning Authority.

Any trees or plants indicated on the approved scheme which, within a period of five years from the date of the development being completed, die, are removed or become seriously damaged or diseased shall be replaced during the next planting season with other trees or plants of a species and size to be first approved in writing by the Local Planning Authority.

All trees and hedges are to be protected and maintained in accordance with FPCR arboricultural method statement (dated November 2024) and associated tree protection plans (FPCR 1796-T-49 Rev B and 1796-T-51 Rev B)

All hard landscape works shall be permanently retained in accordance with the approved details.

Reason: To ensure that the landscape scheme is implemented and maintained in accordance with the SBC Local Plan.

Boundary Treatment

5. Details of the design and specification of all means of enclosure shall be submitted to and approved in writing by the Local Planning Authority. The approved means of enclosure shall be constructed before the use hereby permitted is first occupied.
REASON: To safeguard the character and appearance of the area and because details were not contained in the application.

Case officer: Ros Eastman	**Authorising Officer:** Rachael Adams **Date Authorised:** 4th December 2024